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Advocates, Politicians want Funds from Aliso Canyon Settlement “Redirected”

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Rep. Brad Sherman, state Sen. Henry Stern, and Assemblymember Jesse Gabriel have jointly announced efforts to redirect the Aliso Canyon Settlement funds they termed "dairy digesters" to community projects that reduce dependence on natural gas.

Los Angeles city, county, state officials and the Southern California Gas Company recently agreed to a tentative $119.5 million settlement over the 2015 Aliso Canyon blowout. The deal still must be approved by the court, and is currently subject to a comment period until Sept. 12.

Stern and Gabriel said they plan to unveil new legislation before the comment period closes to ensure that settlement funds "are allocated to projects that directly benefit Los Angeles area residents and the ratepayers" impacted most by the leak.

Of the tentative $119.5 million settlement, more than three quarters of the funds are proposed to be spent on projects that do not directly benefit the community impacted by the disaster that forced thousands of residents from their homes, and continues to plague the north San Fernando Valley with health problems, according to a release from Stern's office.

An estimate $26.5 million is slated for loans to "dairy digesters" projects in the Central Valley to attempt to reduce an equivalent amount of methane pollution that spewed from Aliso Canyon during the historic blowout. And as much as $34 million is allocated to go back to projects that keep California dependent on methane stored at Aliso Canyon.

A class-action suit involving around 9,000 plaintiffs has been filed against SoCalGas. Plaintiffs have publicly stated their dissatisfaction with the settlement since they believe it would end a longtime state investigation of the the leak, which they say hasn't stopped despite the efforts to plug it.

Matt Pakucko of the advocacy group Save Porter Ranch argues that the settlement in this form could weaken the suit.

"The problem is that it doesn't address the current dangers of the facility. It is a tacit approval the facility gets to go on and it keeps on operating," Pakucko said.

"So if the elected officials don't come out and say there is [still] danger, that it is safe then, yeah, it hurts the lawsuit."

Pakucko added that state Attorney General Xavier Becerra "should be investigating the Gas company for the negligence and mismanagement that allowed the blowout to happen in the first place."

SoCalGas advocates the use of dairy gas in Los Angeles' plan to transition to 100 percent renewable energy and has urged the transportation officials to purchase hundreds of factory-farm-gas-powered buses, according to the grassroots advocacy organization Food & Water Watch.

Local residents and Food & Water Watch representatives have also long criticized using clean-up funds to import gas from dairies in the Central Valley, which they say SoCalGas would use to refill the dangerous Aliso Canyon facility.

"We will fight to make sure this money comes back to the residents most affected by the SoCalGas blowout, not benefit the gas company's bottom line," said spokesperson Alexandra Nagy. "It makes no sense to reward the utility responsible for the largest gas disaster in US history with a side deal that enriches it.

"This settlement demonstrates Gov. Brown's decision to protect SoCalGas instead of the health of families in the San Fernando Valley. Instead, he should shut Aliso Canyon for good, now."

The advocacy group is instead urging the $34 million be used for mitigation efforts that would benefit the communities most affected by the Aliso Canyon gas blowout. Such efforts could include investments in electrification, energy efficiency and renewable energy technology.

The leak was discovered in October 2015 and continued sending methane into the atmosphere until Feb. 11, 2016, when it was announced that it was capped. By then, an estimated 109,000 tons of methane had gone into the air.

At its peak, the escaping gas forced an estimated 15,000 Porter Ranch area residents to temporarily relocate.

Limited operations resumed at the facility in late July 2017 with the blessing of state regulators. Efforts by Los Angeles County officials to block the resumed operations failed in court.

SoCalGas has settled other suits brought from the leak— an $8.5 million settlement with South Coast Air Quality Management District, which included $1 million in funding for an SCAQMD-sponsored health study on the leak's impact, although county health officials said that $35 million to $40 million would be needed for an adequate study.

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